

Tentative Rulings for September 10, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2403177	SPENCER VS FC&YT LOGISTICS INC.	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (CELL PHONE RECORDS) AND TO COMPEL PRODUCTION

Tentative Ruling:

The Motion is Untimely

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (CCP § 2031.310(c).) “The 45-day time limit is mandatory and “jurisdictional” (court has no authority to grant a late motion.)” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1491 citing *Sexton v. Sup. Ct. (Mullikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410 [“late-filed motion to compel must be denied where objection raised at hearing even if omitted in opposition papers.”].)

“The 45-day deadline runs *from the date the verified response is served*” (Weil & Brown, *supra.* at § 8.1491.1 citing CCP § 2031.310(c); *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.) Notably, a response with only objections does not need to be verified and is complete on the date of service. (Weil & Brown, *supra.* at §§ 8:1150.7-8:1150.8.) The 45-day deadline is also extended for the time needed to affect service. (CCP §§ 1010.6(a)(3), 1013.)

Here, Gao provided his responses on 5/15/26. The 45-day motion to compel deadline was triggered at that time (plus time for service, i.e., extended by five days for service by mail.) This motion was filed/served on 8/12/26, more than 45 days after Gao had provided his responses. Notably, there was no agreement in writing as to a specific later date to file a motion to compel further responses to RPD3. Therefore, Plaintiff did not timely file this motion to compel Gao’s cell phone records. In other words, Plaintiff waived her right to file this motion. As a result, this motion is untimely and must be denied.

Plaintiff also seeks alternative relief through this motion – a court order requiring Gao to sign an authorization to allow Verizon to release his cell phone records for a limited time just prior to, and just after the accident for the purpose of determining if Gao was on his cell phone at the time the accident occurred. Plaintiff asserts that she cannot obtain Gao’s cell phone records from Verizon without Gao’s authorization. However, **there is no authority for a motion to compel a party to execute an authorization for their personal records.** The court’s general powers are insufficient to require this action. Moreover, there is nothing for the court to compel because Gao has no obligation to sign an authorization, and there is no legal authority for a motion to compel a plaintiff to execute an authorization. Therefore, the motion must also be denied on the alternative basis.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2604706	ZUBER VS VISTA RIO APARTMENTS / APERTO PROPERTY MANAGEMENT	MOTION TO ADVANCE TRIAL DATE

Tentative Ruling: The request is denied. There has been no service of the complaint and there has been no appearance by the defendant. Plaintiff has not set forth grounds allowing for the setting of an early trial date when the matter is not at issue.